

Court No. - 39

Case :- WRIT - C No. - 25 of 2021

Petitioner :- Shankar Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shiv Prakash

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondent no.1 and Sri Pawan Kumar Mishra holding brief of Sri Pranjal Mehrotra, learned counsel for respondent nos. 2, 3 & 4.

Instant writ petition has been filed with the following reliefs :

"(A)- Issue a writ, order or direction in the nature of certiorari to quash the Letter 5299 EUDD-II Moradabad/Recovery Notice dated 30.7.2020 issued by the respondent no. 3 against the petitioner.

(B)- Issue a writ, order or direction in the nature of Mandamus to directing and commanding the respondent authority to connect the petitioner electricity domestic connection A/C ID no. 3255573000.

(C)- Issue a writ, order or direction in the nature of Mandamus directing the competent respondent authority to provide correct statements to the petitioner.

(D)-

(E)"

Submission of the learned counsel for the petitioner is that petitioner's electricity connection was for domestic purpose. However, the Electricity Department has issued an exorbitant bill showing that the petitioner is using the electricity for commercial purposes. In this regard, the petitioner has moved a representation, which is still pending for consideration.

Learned counsel for the Power Corporation submits that in case there is a dispute with respect to the bill amount, the petitioner has a remedy under clause 6.5 of the Electricity Supply Code, 2005. He also submits that if the petitioner moves a fresh representation, the same shall be considered by the respondent no. 3 within a stipulated period.

In view of the fact that there is a remedy available to the petitioner under Clause 6.5 of the U.P. Electricity Code, 2005, the writ petition is disposed of with the liberty to the petitioner to approach the respondent no. 3 - Executive Engineer, Vidyut Nagriya Vitran Khand-II (EUDD-II), Civil Lines, Moradabad by way of filing a representation within a period of three weeks from today. In case any such representation is made by the petitioner, the respondent no. 3 shall decide the same in accordance with law within a period of fifteen days from the date of making of the representation. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the recovery notice dated 30.7.2020 issued by the respondent no. 3.

It is made clear that if the petitioner fails to file the representation as indicated above, he shall not be entitled to get the benefit of this order.

Order Date :- 8.1.2021

nd